

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FormuKleen, Inc.

Complainant,

v.

Top Shipping Systems, Corp.

Respondent.

**RESPONDENT'S RESPONSE TO COMPLAINANT'S COMBINED
MOTION FOR LEAVE TO FILE REPLY OUT OF TIME AND TO ACCEPT
CONSOLIDATED OVER-LENGTH REPLY; OR, IN THE ALTERNATIVE, FOR
LEAVE TO FILE 3 SEPARATE CONFORMING RESPONSES**

Comes Now the Respondent and would respond to the most recent filings by the
Claimant as follows:

1. The rules require communication between the parties and the undersigned
was never contacted by the Complainant about agreeing to an extension of
time as required by Rules but just went and filed a document late. See .
(46 C.F.R. § 502.71(a).
2. The undersigned would not have opposed an extension as the Judge has
encouraged the parties to be courteous regarding such extensions. The
Court made it clear that opposing parties should cooperate in the
proceedings.

3. The Complainant now is also disputing the page limit requirement on a Reply, and the pages have not been reduced by the Complainant. It is not fair for the Respondent to have to deal with something exceeding the allowable length as required under the Rules. (46 C.F.R. § 502.70(e). Again, the Complainant never contacted the undersigned about agreeing to a lengthier reply in violation of (46 C.F.R. § 502.71(a).
4. It is also respectfully pointed out that the Motion for Summary Judgment had to be filed three times before being accepted as a filing. Even with the third filing, it was still incorrect as it left the improperly set forth Statement of Facts in the Motion itself along with the separately attached Statement of Facts. See D/No effort was made to modify the text of the improper Motion, and it was simply resubmitted along with an additional Statement of Facts and created unnecessary work for the Respondent.

Wherefor the Respondent states its opposition to allowing the Complainant to file an extra 11 pages as a part of its Reply Brief.

Dated: August 25, 2025

CERTIFICATE OF SERVICE

I certify that on the 25th day of August 25, 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:
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Respectfully submitted,

Daniel W. Raab. P.A.

s/Daniel W. Raab

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